

H-1278

1 Amend House File 1016 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 509A.13E Health insurance
5 coverage — surviving spouse and children of employees of the
6 state of Iowa.

7 1. For the purposes of this section, "*eligible employee*
8 *of the state of Iowa*" means an employee of the state of
9 Iowa, including but not limited to any department, agency,
10 board, bureau, or commission of the state of Iowa, who is
11 participating in a state health or medical group insurance plan
12 under chapter 509A which covers the employee at the time of
13 death of the employee and whose death has been determined by
14 the department of administrative services to be the direct and
15 proximate result of a traumatic personal injury incurred in the
16 performance of the employee's work duties, and to whom none of
17 the following applies:

18 a. The employee's death resulted from stress, strain,
19 occupational illness, or a chronic, progressive, or congenital
20 illness, including but not limited to a disease of the heart,
21 lungs, or respiratory system, unless the traumatic personal
22 injury was a substantial contributing factor to the employee's
23 death.

24 b. The employee's death was caused by the employee's
25 intentional misconduct, or by the employee's intent to cause
26 the employee's own death.

27 c. The employee was voluntarily intoxicated at the time of
28 the employee's death.

29 d. The employee was performing the employee's duties in a
30 grossly negligent manner at the time of the employee's death.

31 2. a. The governing body of the state shall permit
32 continuation of existing health insurance coverage or
33 reenrollment in previously existing coverage for the surviving
34 spouse and each surviving child of an eligible employee of the
35 state of Iowa.

1 *b.* The governing body of the state shall permit continuation
2 of existing health insurance coverage for the surviving spouse
3 and each surviving child of an employee of the state of Iowa
4 who dies and who is reasonably expected to be determined to be
5 an eligible employee of the state of Iowa, until such time as
6 the determination of eligibility is made.

7 3. The governing body of the state shall not be required to
8 pay for the cost of the health insurance under this section;
9 however, the governing body of the state may pay the full cost
10 or a portion of the cost of the health insurance, in which case
11 the department, agency, board, bureau, commission, or other
12 employing entity of the eligible employee of the state of Iowa
13 shall bear the cost of such health insurance. If the full
14 cost or a portion of the cost of the coverage is not paid by
15 the governing body of the state, the surviving spouse and each
16 surviving child who is eligible for health insurance under this
17 section may elect to continue coverage by paying that portion
18 of the cost of the health insurance not paid by the governing
19 body of the state.

20 4. The governing body of the state shall notify the
21 provider of health insurance coverage for state employees of
22 the identity of the surviving spouse and each surviving child
23 who is to be provided health insurance coverage pursuant to the
24 requirements of this section.

25 5. The governing body of the state shall implement
26 continuation of health insurance coverage for the surviving
27 spouse and each surviving child of an eligible employee of
28 the state of Iowa in a manner that ensures that the health
29 insurance coverage provided under this section is the payor of
30 last resort, as permitted by federal law.

31 6. *a.* This section shall not require continuation of health
32 insurance coverage if the surviving spouse or a surviving child
33 who would otherwise be entitled to continuation of health
34 insurance coverage under this section was, through the actions
35 of the surviving spouse or the surviving child, a substantial

1 contributing factor to the death of the eligible employee of
2 the state of Iowa.

3 *b.* This section shall not require continuation of health
4 insurance coverage if the surviving spouse or a surviving child
5 becomes ineligible for health insurance coverage under the
6 terms of the health insurance coverage obtained by the state
7 for reasons other than the death of the eligible employee of
8 the state of Iowa, including but not limited to ineligibility
9 under this chapter, remarriage of the surviving spouse, or
10 ineligibility for continuing coverage for a surviving child
11 pursuant to section 509A.13B.

12 Sec. 2. RETROACTIVE APPLICABILITY. This Act applies
13 retroactively to January 1, 2024.>

14 2. Title page, by striking lines 1 through 4 and inserting
15 <An Act providing for the continuation of health insurance
16 in certain circumstances for the surviving spouse and each
17 surviving child of employees of the state of Iowa and including
18 retroactive applicability provisions.>

BERGAN of Winneshiek